

Court No. - 37

Case :- WRIT - C No. - 38177 of 2013

Petitioner :- Devendra Kumar Bansal

Respondent :- The State Of U.P. Thru 3 Others

Counsel for Petitioner :- H.P. Dube

Counsel for Respondent :- C.S.C., Nripendra Mishra

Hon'ble Ashok Bhushan, J.

Hon'ble Manoj Kumar Gupta, J.

Heard counsel for the petitioner, standing counsel for the State-respondent and Sri Nripendra Mishra for respondent no. 2,3 and 4.

By this writ petition the petitioner has prayed for a direction to the respondent to constitute an appropriate committee in exercise of power purporting to be under Clause 8.0(5) of the UP Electricity Supply Code, 2005 for holding an inquiry in respect to the procedure alleged to have been adopted by respondent no. 4 during the course of inspection.

The counsel for the petitioner submits that he has oral instruction that a provisional assessment notice has already been served on the petitioner. It is open for the petitioner to file objections against the same and wherein he may also take all possible objections against the procedure adopted during the checking.

According to the petitioner, he has also filed a representation against the procedure adopted during inspection which is Annexure-6 to the writ petition.

In view of the facts and circumstances of the case, we are not inclined to entertain the writ petition. It is open for the petitioner to raise all his objections in reply to the provisional assessment notice or to pursue the remedy as provided in the UP Electricity Supply Code, 2005.

With the aforesaid observations, the writ petition is dismissed.

(Manoj Kumar Gupta, J.) (Ashok Bhushan, J.)

Order Date :- 17.7.2013

SKS